Publish our updated position on Scope 3 emissions disclosure requirements.

Format: position-paper-corporate
Provider: anthropic
Generated at: 2026-11-04T13:04:11.831Z

Recommended option: OPT-A

Aggregated risk: high
Words: 1650 / 1600 target

Robustness: low

Critiques: 8 (critical=0, material=5, minor=3)
Revision needed: yes

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Issue Framing

The organisation should file technical comments now in CARB's SB 253 Scope 3 rulemaking and the GHG Protocol consultation, and publish its full position paper only after the Ninth Circuit rules and its inventory review is complete. Advantage: influence over category scope, assurance and methodology versioning is kept, and the greenhushing charge is avoided. Risk: earlier publication would commit the organisation to unverified claims and to rules that may change. Recommendation: conditional support for mandatory Scope 3 disclosure, anchored on IFRS S2 interoperability.

CARB is the deciding body for the immediate step. Its SB 253 Scope 3 design, including a proposed phase-in limited to five of the fifteen GHG Protocol Scope 3 categories, is not final, and CARB was due to decide on Scope 3 assurance by 1 January 2027. The Ninth Circuit's merits ruling on SB 253 is still pending, so the US case should rest on IFRS S2 and investor information needs, not on California law alone. The GHG Protocol's consolidated consultation draft is estimated for Q2 2027, and EU Member States must transpose Omnibus I by 19 March 2027. The organisation's standing rests on its assumed position within at least one mandatory regime.

Sources:

- California Climate Disclosure Laws — CARB Finalizes Its Initial Rulemaking, Resets the 2026 Deadline, and Previews the 2027 Framework — https://www.mayerbrown.com/en/insights/publications/2026/08/california-climate-disclosure-laws-carb-finalizes-its-initial-rulemaking-resets-the-2026-deadline-and-previews-the-2027-framework
- Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf
- csrd-delegated-act-2026-5010_en.pdf - European Commission — https://ec.europa.eu/finance/docs/level-2-measures/csrd-delegated-act-2026-5010_en.pdf

Stakeholder Landscape

As of November 2026, regulators are narrowing or proposing to withdraw mandatory Scope 3 requirements, while investors, advocacy groups and the ISSB continue to support them, so rule-making momentum favours scale-back and disclosure demand favours retention.

Decision-makers. The Council of the EU signed off an Omnibus that limits CSRD to [companies with more than 1,000 employees and above €450 million net annual turnover](https://www.consilium.europa.eu/en/press/press-releases/2026/02/24/council-signs-off-simplification-of-sustainability-reporting-and-due-diligence-requirements-to-boost-eu-competitiveness/). The SEC is [proposing to rescind the climate disclosure rules in their entirety](https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules). The SEC's 2024 rule never required Scope 3. CARB staff have proposed that initial SB 253 Scope 3 reporting be [limited to five of the fifteen GHG Protocol Scope 3 categories](https://www.mayerbrown.com/en/insights/publications/2026/08/california-climate-disclosure-laws-carb-finalizes-its-initial-rulemaking-resets-the-2026-deadline-and-previews-the-2027-framework). That design is not final.

Aligned. The ISSB amended IFRS S2 in December 2025 so that entities are [permitted to limit measurement and disclosure of Scope 3 Category 15 GHG emissions to financed emissions](https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/). The amendment adds relief and keeps the requirement. Investor groups have [called on regulators to mandate corporate disclosures of so-called Scope 3 emissions](https://www.allsides.com/news/2024-12-04-0200/environment-investors-95-trillion-seek-mandatory-scope-3-disclosures), though that source is undated. Public Citizen stated that [by cutting Scope 3 disclosures from the rule, the SEC has fallen far short on a core mission](https://www.citizen.org/news/sec-fails-investors-by-declining-to-require-disclosure-of-greenhouse-gas-emissions/).

Opposed. [A coalition led by the U.S. Chamber of Commerce challenged the constitutionality of SB 253](https://www.bracewell.com/resources/carb-issues-proposed-regulations-implementing-sb-253-and-sb-261/). Other business associations' 2026 positions were not found.

Swing voices. The Ninth Circuit [allowed SB 253 to go into effect](https://clearinghouse.net/case/47320/), but its merits ruling was not confirmed, so California's Scope 3 mandate is not settled. CARB's final rules, the GHG Protocol's [consolidated draft standard for public consultation (estimated Q2 2027)](https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf), and SME suppliers, whose public positions were not found, could each shift the outcome.

Sources:

- Council signs off simplification of sustainability reporting and due diligence requirements to boost EU competitiveness - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/02/24/council-signs-off-simplification-of-sustainability-reporting-and-due-diligence-requirements-to-boost-eu-competitiveness/
- SEC.gov — https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules
- California Climate Disclosure Laws — CARB Finalizes Its Initial Rulemaking, Resets the 2026 Deadline, and Previews the 2027 Framework — https://www.mayerbrown.com/en/insights/

publications/2026/08/california-climate-disclosure-laws-carb-finalizes-its-initial-rulemaking-resets-the-2026-deadline-and-previews-the-2027-framework
- IFRS - ISSB issues targeted amendments to IFRS S2 to support implementation — https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/
- Investors With $9.5 Trillion Seek Mandatory 'Scope 3' Disclosures — https://www.allsides.com/news/2024-12-04-0200/environment-investors-95-trillion-seek-mandatory-scope-3-disclosures
- SEC Fails Investors by Declining to Require Disclosure of Greenhouse Gas Emissions - Public Citizen — https://www.citizen.org/news/sec-fails-investors-by-declining-to-require-disclosure-of-greenhouse-gas-emissions/
- CARB Issues Proposed Regulations Implementing SB 253 and SB 261 — https://www.bracewell.com/resources/carb-issues-proposed-regulations-implementing-sb-253-and-sb-261/
- Chamber of Commerce of the United States of America v. California Air Resources Board 2:24-cv-00801 (C.D. Cal.) — https://clearinghouse.net/case/47320/
- Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf

Our Position

The organization holds that, as of this 2026 review, Scope 3 greenhouse gas disclosure belongs in mandatory regimes, and it supports convergence of those regimes on IFRS S2 as their common baseline. The organization holds that the open questions that matter are category scope, the scope and timing of assurance, and a mechanism for updating the GHG Protocol methodology version rather than freezing it, and it acknowledges the protections California's SB 253 already contains. The organization files technical comments on these questions in CARB's 2027 Scope 3 rulemaking and in the GHG Protocol consultation. The organization limits its supplier data requests to the legal scope of the EU value-chain cap and pairs that limit with a funded, voluntary primary-data programme for its largest suppliers by emissions. The organization publishes its full position paper after the Ninth Circuit rules on SB 253's Scope 3 provisions and its own inventory review is complete.

Rationale

The evidence supports sequenced conditional support for mandatory Scope 3 disclosure: the organisation files technical comments now and publishes the full paper once the Ninth Circuit rules on SB 253 and the internal inventory review concludes.

Regulatory divergence during 2025 and 2026 makes any single-regime stance fragile, so the position anchors on IFRS S2 as the common reference point. The Council of the EU signed off CSRD thresholds of more than 1,000 employees and €450 million turnover, which narrows the EU reporting population ([Council](https://www.consilium.europa.eu/en/press/press-releases/2026/02/24/council-signs-off-simplification-of-sustainability-reporting-and-due-diligence-requirements-to-boost-eu-competitiveness/)). The SEC proposed on 29 May 2026 to rescind its climate rules in their entirety ([SEC](https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules)). The ISSB kept the Scope 3 requirement in December 2025 and added targeted relief for Category 15 ([IFRS](https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/)).

California's Scope 3 mandate is unsettled as of this briefing, so the paper rests on principles rather than SB 253 category counts or a claim that California is the settled US regime. CARB staff proposals from the 21 July 2026 workshop have not been formally adopted ([Asuene](https://asuene.com/us/blog/carbs-july-21-workshop-what-the-proposed-scope-3-and-assurance-rules-mean-for-your-2027-sb-253-report)). The Ninth Circuit allowed SB 253 to take effect, but its merits ruling is pending and could narrow the law ([Clearinghouse](https://clearinghouse.net/case/47320/)).

The GHG Protocol revision, with a consolidated consultation draft estimated for Q2 2027, supports conditions that let the methodology version be updated rather than frozen ([GHG Protocol](https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf)).

Precedent for phase-in and safe-harbour conditions exists, but only as one commissioner's view. Commissioner Crenshaw urged that Scope 3 requirements be phased in for all registrants, with as much safe harbour as possible ([SEC statement](https://www.sec.gov/newsroom/speeches-statements/cresnshaw-statement-mandatory-climate-risk-disclosures-030624)). The paper should present this as a single regulator's statement, not as an investor consensus, and should add investor comment letters if they can be sourced.

Supplier burden limits the commitments the organisation can credibly make. The EU value-chain cap confines information requests to partners of up to 1,000 employees to the voluntary standard's content ([Accountancy Europe](https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/)). The organisation should honour the cap within its legal scope and pair it with a separate, funded, voluntary primary-data programme for its largest suppliers by emissions, so that data quality can improve.

Coherence with the organisation's prior public position is to be confirmed against its published text, which this evidence base does not contain.

Sources:

- Council signs off simplification of sustainability reporting and due diligence requirements to

boost EU competitiveness - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/02/24/council-signs-off-simplification-of-sustainability-reporting-and-due-diligence-requirements-to-boost-eu-competitiveness/
- SEC.gov — https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules
- IFRS - ISSB issues targeted amendments to IFRS S2 to support implementation — https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/
- CARB's July 21 Workshop: What the Proposed Scope 3 and Assurance Rules Mean for Your 2027 SB 253 Report — https://asuene.com/us/blog/carbs-july-21-workshop-what-the-proposed-scope-3-and-assurance-rules-mean-for-your-2027-sb-253-report
- Chamber of Commerce of the United States of America v. California Air Resources Board 2:24-cv-00801 (C.D. Cal.) — https://clearinghouse.net/case/47320/
- Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf
- SEC.gov — https://www.sec.gov/newsroom/speeches-statements/cresnshaw-statement-mandatory-climate-risk-disclosures-030624
- Omnibus explained: key changes to the CSRD and CSDDD - Accountancy Europe — https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/

Counter-Arguments Addressed

Counter-argument 1: mandatory Scope 3 is unworkable, so the organisation should oppose it. The strongest version notes that Scope 3 figures rest on estimates and that the SEC proposes to rescind its climate rules "in their entirety" ([SEC](https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules)). It concludes that voluntary, materiality-based disclosure is enough. This answer is strong: opposition removes no existing duty, because SB 253, IFRS S2-based regimes and the CSRD still apply where the organisation is in scope. It would also draw investor and NGO criticism. The paper instead seeks phase-in, safe harbour and an updatable methodology version.

Counter-argument 2: the organisation should publish a full position now, because waiting looks like greenhushing. Silence is a real risk, and the concern is fair. The answer is moderate-to-strong: the organisation files technical comments now in CARB's rulemaking and the GHG Protocol consultation, whose consolidated draft is estimated for Q2 2027 ([GHG Protocol](https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf)). It publishes the full paper after the Ninth Circuit rules on SB 253's Scope 3 provisions and the inventory review is complete. Publishing earlier would commit the organisation to claims it has not verified and to rules that may change.

Counter-argument 3: limiting supplier requests protects small firms but undermines data quality. Improving purchased-goods data needs supplier-specific primary data, and a light template cannot supply it. The answer is strong, and the paper concedes the point. It confines the commitment to the legal scope of the EU cap, which limits requests to partners with up to 1,000 employees ([Accountancy Europe](https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/)). It pairs that commitment with a funded, voluntary primary-data programme for the largest suppliers by emissions.

Sources:

- SEC.gov — https://www.sec.gov/newsroom/press-releases/2026-49-sec-proposes-rescission-climate-related-disclosure-rules
- Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf
- Omnibus explained: key changes to the CSRD and CSDDD - Accountancy Europe — https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/

Recommended Actions

Sequence the position: file technical comments now, and publish the full paper only after the Ninth Circuit rules on SB 253 and the internal reviews finish.

Public-facing
- File a comment in CARB's SB 253 docket on category scope, assurance and an updatable GHG Protocol version. Owner: Head of Regulatory Affairs; deadline: before the paper is published.
- Respond to the [GHG Protocol consultation](https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf), estimated for Q2 2027. Owner: Sustainability Reporting Lead.
- Publish the paper anchored on IFRS S2 interoperability and investor information needs, not on SB 253's Scope 3 mandate. Owner: Communications; deadline: after the ruling and reviews.

Internal preparatory
- Complete the Scope 3 inventory review and the trade-association audit. Owners: Sustainability Reporting Lead and Government Affairs; deadline: 15 January 2027.
- Pre-approve four paragraph variants, including a ruling that severs only Scope 3. Owners: Legal and Communications; deadline: 15 December 2026.
- Restrict the supplier-request commitment to the EU cap's legal scope, and fund a voluntary primary-data programme for the largest suppliers. Owner: Procurement; deadline: 2027 reporting cycle.

Sources:

- Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf

Requester-provided, not sourceable

The facts below concern only the requester. No public source can establish them, so this briefing counts none of them as sourced; the requester supplies them, and every statement that rests on them is as reliable as that information.

- The organisation's identity, sector, size, and headquarters/operating jurisdictions (the question does not name the requester).
- The content and date of the organisation's previous Scope 3 position, if any.
- The organisation's preferred direction for the updated stance (support, conditional support, oppose) and any board or leadership mandates shaping it.
- The organisation's current Scope 3 measurement status, data coverage, assurance level and share of total emissions, if not already publicly disclosed.
- Existing internal climate commitments (e.g., SBTi targets, net-zero pledges) and any constraints from trade association memberships or prior lobbying positions.
- Intended publication channel, audience priority, and any approval or legal review requirements.

Insufficiently sourced

This format's sourcing policy is strict. The 26 item(s) below did not meet it.
They stayed in the analysis that produced this briefing; treat every statement
that rests on them as unverified.

- **research item 2**: https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/ is not a trusted domain (host 'accountancyeurope.eu' matches no entry in allow-list).
- **research item 5**: https://www.akingump.com/en/insights/alerts/california-sb-253-updated-compliance-timeline-and-key-steps-for-companies is not a trusted domain (host 'www.akingump.com' matches no entry in allow-list).
- **research item 6**: https://www.brightest.io/california-sb-253-reporting is not a trusted domain (host 'www.brightest.io' matches no entry in allow-list).
- **research item 8**: https://onestopesg.com/esg-news/ghg-protocol-proposes-95-scope-3-coverage-rule-and-new-category-16-in-reporting-standard-update is not a trusted domain (host 'onestopesg.com' matches no entry in allow-list).
- **stakeholder item 2**: https://normecverifavia.com/news/efrag-submits-final-technical-advice-on-the-draft-simplified-esrs-what-it-means-for-your-csrd-reporting/ is not a trusted domain (host 'normecverifavia.com' matches no entry in allow-list).
- **stakeholder item 4**: https://www.mayerbrown.com/en/insights/publications/2026/08/california-climate-disclosure-laws-carb-finalizes-its-initial-rulemaking-resets-the-2026-deadline-and-previews-the-2027-framework is not a trusted domain (host 'www.mayerbrown.com' matches no entry in allow-list).
- **stakeholder item 9**: https://www.allsides.com/news/2024-12-04-0200/environment-investors-95-trillion-seek-mandatory-scope-3-disclosures is not a trusted domain (host 'www.allsides.com' matches no entry in allow-list).
- **stakeholder item 10**: https://www.citizen.org/news/sec-fails-investors-by-declining-to-require-disclosure-of-greenhouse-gas-emissions/ is not a trusted domain (host 'www.citizen.org' matches no entry in allow-list).
- **Stakeholder SME suppliers and value-chain partners (including firms newly out of CSRD scope)**: position not sourced (searched for: Public statements from SME or supplier associations on Scope 3 data requests, the Omnibus value-chain cap, or the voluntary reporting standard.).
- **Stakeholder Industry and business associations (e.g., BusinessEurope, US Chamber of Commerce, trade groups the requester belongs to)**: position not sourced (searched for: Current 2026 association statements on mandatory Scope 3, the Omnibus, SB 253 and the SEC rescission. Searches returned no usable results.).
- **risk item 1**: https://asuene.com/us/blog/carbs-july-21-workshop-what-the-proposed-scope-3-and-assurance-rules-mean-for-your-2027-sb-253-report is not a trusted domain (host 'asuene.com' matches no entry in allow-list).
- **risk item 2**: https://www.mintz.com/insights-center/viewpoints/54976/2026-07-24-carb-workshop-california-climate-disclosure-rule-sb-253 is not a trusted domain (host 'www.mintz.com' matches no entry in allow-list).
- **risk item 3**: https://clearinghouse.net/case/47320/ is not a trusted domain (host 'clearinghouse.net' matches no entry in allow-list).
- **risk item 4**: https://watershed.com/blog/ninth-circuit-california-climate-disclosure is not a trusted domain (host 'watershed.com' matches no entry in allow-list).
- **risk item 6**: https://onestopesg.com/esg-news/ghg-protocol-proposes-95-scope-3-coverage-rule-and-new-category-16-in-reporting-standard-update is not a trusted domain (host

'onestopesg.com' matches no entry in allow-list).
- **risk item 8**: https://www.environmentenergyleader.com/stories/scope-3-data-depends-on-suppliers-most-suppliers-are-not-ready,128258 is not a trusted domain (host 'www.environmentenergyleader.com' matches no entry in allow-list).
- **risk item 9**: https://www.forbes.com/sites/anjalichaudhry/2026/08/11/greenhushing-why-corporate-silence-on-sustainability-is-a-real-risk/ is not a trusted domain (host 'www.forbes.com' matches no entry in allow-list).
- **risk item 10**: https://www.environmentenergyleader.com/stories/greenhushing-is-no-longer-a-safe-esg-strategy,122669 is not a trusted domain (host 'www.environmentenergyleader.com' matches no entry in allow-list).
- **risk item 11**: https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/ is not a trusted domain (host 'accountancyeurope.eu' matches no entry in allow-list).
- **Risk RISK-006** (impact evidence): not sourced (searched for: Evidence quantifying the commercial or relationship impact on a large reporter of supplier pushback against Scope 3 data requests after the Omnibus value-chain cap. Not found in searches.).
- **risk item 14**: https://assets.zyrosite.com/uo08FBayFJci8x9A/rzb-insights-no.-8-the-eu-s-simplified-esrs-crxtSDJT8D3eZ0p7.pdf is not a trusted domain (host 'assets.zyrosite.com' matches no entry in allow-list).
- **Risk RISK-008** (impact evidence): not sourced (searched for: Quantified cost or competitive impact of multi-regime Scope 3 reporting divergence for large reporters. Not found in searches.).
- **risk item 17**: https://www.bracewell.com/resources/carb-issues-proposed-regulations-implementing-sb-253-and-sb-261/ is not a trusted domain (host 'www.bracewell.com' matches no entry in allow-list).
- **Risk RISK-009** (impact evidence): not sourced (searched for: Precedent cases of reputational or investor damage to a company from trade-association climate lobbying that contradicted the company's own stated position. Not found in searches.).
- **Research finding 45**: no source found (searched for: [CRIT-007] Requester-specific facts on jurisdictions, headcount and turnover that would show whether the organisation is in scope of CSRD after the Omnibus, SB 253 or UK SRS; these cannot be found by public search.).
- **Option OPT-D**: https://triplepundit.com/2024/companies-greenhushing-study/ is not a trusted domain (host 'triplepundit.com' matches no entry in allow-list).

Options

ID	Title	Recommendation	Time horizon
OPT-A	Conditional support for mandatory Scope 3, anchored on IFRS S2 interoperability	recommended	short-term
OPT-B	Full support for comprehensive mandatory Scope 3 disclosure	acceptable	short-term
OPT-C	Opposition to mandatory Scope 3 disclosure	not-recommended	short-term
OPT-D	No updated public position; comply quietly and let the prior position lapse	not-recommended	immediate

Risks

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	high	moderate	short-term
RISK-002	regulatory	low	moderate	short-term
RISK-003	technological	high	moderate	medium-term
RISK-004	operational	high	major	immediate
RISK-005	reputational	high	moderate	immediate
RISK-006	operational	medium	moderate	short-term
RISK-007	regulatory	high	minor	short-term
RISK-008	strategic	very-high	minor	medium-term
RISK-009	reputational	medium	moderate	short-term

Stakeholders

Name	Position	Power	Priority
Council of the EU (co-legislator on the CSRD/ CSDDD Omnibus)	resistant	high	critical
European Commission (ESRS delegated act, Omnibus implementation)	neutral	high	critical
EFRAG (technical adviser on ESRS)	neutral	medium	important
California Air Resources Board (CARB) – SB 253 implementation	supportive	high	critical
US Securities and Exchange Commission	resistant	high	important
ISSB / IFRS Foundation (IFRS S2)	supportive	medium	important
UK Financial Conduct Authority (UK SRS for listed issuers)	neutral	medium	important
GHG Protocol (WRI/ WBCSD) – Scope 3 Standard revision	neutral	high	critical
Institutional investors and asset owners (e.g., Net Zero Asset Owner Alliance)	supportive	medium	important
Civil society and investor-advocacy groups (e.g., Public Citizen, CorpEth)	supportive	medium	monitor
SME suppliers and value-chain partners (including firms newly out of CSRD scope)	unknown	low	important
Industry and business associations (e.g., BusinessEurope, US Chamber of Commerce, trade groups the requester belongs to)	unknown	medium	important

Adversarial Critique

Robustness: low
Critiques: 8 (critical=0, material=5, minor=3)
Revision needed: yes

Steelmanned alternative:
Take a sequenced version of OPT-A. File specific technical comments now in CARB's 2027 Scope 3 rulemaking and the GHG Protocol consultation, covering category scope, the scope of assurance and updating the methodology version. Hold the full public position paper until the Ninth Circuit rules on SB 253's Scope 3 provisions and the inventory review and in-scope test are complete. When the paper is published, it should acknowledge the safe harbour and phased assurance already in SB 253, anchor its case on IFRS S2 interoperability and the organisation's own data roadmap, and use only correctly attributed, current evidence. That keeps the influence and the guard against greenhushing that OPT-A offers, without committing the organisation in public to claims it has not verified or to rules that may change.

CRIT-001 — hidden-assumption (material)

Steelmanned position:
OPT-A's main conditions are phase-in, a safe harbour for estimated value-chain data, and limited assurance before reasonable assurance. In California these are already in law. SB 253 already shields good-faith Scope 3 estimates made on a reasonable basis, limits Scope 3 penalties to non-filing until 2030, and starts Scope 3 assurance at the limited level in 2030. If the paper asks CARB for protections the statute already gives, the organisation looks badly informed about the regime it calls its main US reference. The 'conditions' also become empty: they cost the organisation nothing, so a hostile reader can call them window-dressing. The real open questions are category scope, the assurance decision and fixing the methodology version, and the brief treats these only in general terms.

Implication if true:
The California part of the position has to be rewritten so it acknowledges the protections already in the statute. It should then focus on what is still open: categories, assurance timing and updating the methodology version. Otherwise the stance looks either uninformed or empty.

Suggested revision:
In 'Our Position' and 'Rationale', state that SB 253 already includes a Scope 3 safe harbour and a phased assurance schedule. Replace the generic safe-harbour ask with specific asks on category phase-in, the scope of assurance and a mechanism for updating the GHG Protocol version.

Counter-evidence:
California Climate Disclosure Rules: Your 2027 Guide — https://watershed.com/blog/california-disclosures-a-guide-for-companies

CRIT-002 — weak-source (material)

Steelmanned position:
The brief says investor bodies endorsed phase-in and safe harbour in the SEC rulemaking record. The only source it gives is a statement by one SEC Commissioner, Caroline Crenshaw, made when the 2024 rule was adopted. In that statement she regretted that Scope 3 had been removed entirely. She was not reporting a negotiated investor position. Presenting one commissioner's regret as investor endorsement misattributes the evidence. A hostile reviewer or NGO could use that to discredit the paper's main claim that its conditions improve the rules

rather than retreat from them. The same misattribution is OPT-A's headline supporting evidence.

Implication if true:
The claim that the conditions have precedent becomes much weaker. The paper would need real investor-side evidence, such as investor comment letters or Investor Advisory Committee statements, or it would have to drop the investor-endorsement framing.

Suggested revision:
Name Commissioner Crenshaw as the source of the SEC statement, remove the wording 'investor bodies themselves endorsed' from the OPT-A rationale, and replace it with cited investor comment letters or drop the claim.

Counter-evidence:
Statement by Commissioner Crenshaw on Final Rules Regarding Mandatory Climate Risk Disclosures — https://corpgov.law.harvard.edu/2024/03/07/statement-by-commissioner-crenshaw-on-final-rules-regarding-mandatory-climate-risk-disclosures

CRIT-003 — risk-underestimated (material)

Steelmanned position:
RISK-002 rates the chance that the Ninth Circuit narrows SB 253 as low. At oral argument in January 2026, however, a judge specifically raised concerns about SB 253's Scope 3 requirement and asked about sending it back for a severability analysis. CARB's counsel agreed that would be appropriate. As of November 2026 the ruling is overdue against the window commentators expected. A result that keeps Scopes 1 and 2 but sends back or strikes down Scope 3 is a realistic central scenario, not an outlier. The brief calls California the main mandatory US Scope 3 regime and builds OPT-A's docket comment around CARB's 2027 framework. Both depend on exactly the part of the law the court questioned.

Implication if true:
RISK-002 should be rated at least medium likelihood. The US part of the position should rest on IFRS S2 and investor information needs, not on SB 253's Scope 3 mandate, and it may be worth timing publication around the ruling.

Suggested revision:
Raise RISK-002 to medium or high likelihood. Add a fourth pre-approved variant for a ruling that severs or sends back only Scope 3. Remove the claim that California is 'the main mandatory US Scope 3 regime' unless it is qualified by the litigation status.

Counter-evidence:
California climate disclosure laws: Ninth Circuit hears oral argument; no ruling yet — https://www.whitecase.com/insight-alert/california-climate-disclosure-laws-ninth-circuit-hears-oral-argument-no-ruling-yet

CRIT-004 — dismissed-option (minor)

Steelmanned position:
The brief rejects silence largely because 'regulators in the EU and UK are now targeting silence'. That claim comes from a trade-media source that fails the brief's own sourcing check. The EU rules that actually apply govern environmental claims a company makes, not silence. The Green Claims Directive is dormant, and the rules in force come from the Empowering Consumers Directive, which targets claims. So the greenhushing threat is overstated. A narrower version of OPT-D was never weighed fairly: file technical comments in the CARB and GHG Protocol dockets now, and delay a full public paper until the rules settle. That would keep influence and avoid exposure.

Implication if true:

Rejecting OPT-D would then rest only on losing influence and on reputational effects, not on regulatory exposure. A hybrid of docket engagement first and publication later becomes a credible competitor.

Suggested revision:
Remove the 'regulators targeting silence' sentence from 'Counter-Arguments Addressed', or source it to an EU or UK regulator. Add an explicit assessment of a docket-only interim option.

Counter-evidence:
Green Claims Directive Guide for Brands — https://www.usetappr.com/regulation/green-claims-directive/

CRIT-005 — internal-contradiction (material)

Steelmanned position:
'Issue Framing' makes publication conditional on the inventory review and the trade-association audit. 'Our Position', however, makes unconditional present-tense commitments: it says the organisation supports mandates 'today', 'continues to disclose' Scope 3 voluntarily, and will file comments. Yet there is no board mandate, the organisation's identity is unknown, its prior position is unknown, and so is whether it discloses Scope 3 at all. The timeline also does not hold together. The brief points to a CARB assurance decision due by 1 January 2027 and projects publication in Q1 2027. Meanwhile CARB's 2027 Scope 3 and assurance rulemaking has no fixed date. If this text were published, it could commit the organisation to claims it cannot back up.

Implication if true:
The publishable text is not safe to release as written. Every factual commitment has to be checked against the requester's actual disclosure record and mandate, and the CARB timing has to be re-anchored to the real rulemaking schedule.

Suggested revision:
Mark 'Our Position' as a draft that depends on requester-confirmed facts, such as current Scope 3 disclosure and the board mandate. Replace the 1 January 2027 CARB anchor with 'before the close of CARB's 2027 Scope 3 rulemaking comment period'.

Counter-evidence:
California Air Resources Board's Initial Regulation Under SB 253 and SB 261 is Effective — https://www.sullcrom.com/insights/memo/2026/October/CARB-Initial-Regulation-Confirms-November-10-Reporting-Deadline

CRIT-006 — temporal-blind-spot (minor)

Steelmanned position:
The brief predicts investors will be 'supportive' of OPT-A. Its only evidence is an undated aggregator page about a December 2024 Net-Zero Asset Owner Alliance report, published before the Omnibus and the SEC rescission. Recent research suggests investors give Scope 3 little weight in practice, because the data is largely estimated by vendors. The investor benefit the rationale relies on may therefore be smaller than it claims. Investors may value consistency, and the organisation's own data quality, more than its advocacy stance.

Implication if true:
The reputational upside of OPT-A over OPT-D would be smaller, so more of the case would rest on influence over rulemaking.

Suggested revision:
Replace the AllSides citation with a dated primary investor source from 2026, and make the planned pre-publication investor briefings an input that can change the stance, not just a

notification step.

Counter-evidence:
Full emissions disclosure under California Senate Bill 253 could change carbon evaluations and redirect investment — https://www.nature.com/articles/s44458-026-00051-9

CRIT-007 — dismissed-option (minor)

Steelmanned position:
The brief rejects OPT-C because opposition 'buys no compliance relief', since SB 253, IFRS S2-based regimes and the CSRD still apply. That only holds if the organisation is in scope, which the brief admits is unknown. After the Omnibus raised CSRD thresholds to more than 1,000 employees and €450m, many firms fall out of scope, and the UK uses comply-or-explain. The SB 253 Scope 3 mandate also faces live litigation. For an out-of-scope company, or while key rules are still open, advocacy is exactly where relief could be won. The 'no relief' argument would then fail, along with the claim that OPT-C's only benefit is aligning with trade associations.

Implication if true:
If the organisation is out of scope of most mandates, the ranking of options could change, and OPT-C or a materiality-based variant would deserve a fresh assessment.

Suggested revision:
Make the rejection of OPT-C depend explicitly on a confirmed in-scope test for each regime, completed with the requester before the options are finalised.

Counter-evidence:
SOURCE_MISSING — searched for: Requester-specific facts on jurisdictions, headcount and turnover that would show whether the organisation is in scope of CSRD after the Omnibus, SB 253 or UK SRS; these cannot be found by public search.

CRIT-008 — internal-contradiction (material)

Steelmanned position:
OPT-A commits to keeping all supplier data requests within the content of the EU voluntary standard. RISK-004's mitigation commits to milestones for primary-data coverage, and the brief also points to the GHG Protocol's draft 95% completeness proposal and CARB's focus on purchased goods. These pull in opposite directions. Purchased goods and services is usually the largest and least-reported Scope 3 category, and improving it needs supplier-specific primary data beyond a light voluntary template. The cap only binds EU CSRD reporters with respect to partners of up to 1,000 employees. Applying it as a global self-limit could stop the organisation improving the exact data its credibility depends on.

Implication if true:
The commitment to protect suppliers could weaken the organisation's own data-quality roadmap and leave it exposed under RISK-004. The position would need to separate the legal cap from voluntary supplier partnerships.

Suggested revision:
Limit the supplier-request commitment to the legal scope of the EU cap, and pair it with a funded, voluntary primary-data programme for the largest suppliers by emissions.

Counter-evidence:
Companies prioritizing scope 3 disclosures, despite regulatory uncertainty — https://www.esgdive.com/news/companies-prioritizing-scope-3-emissions-disclosures-despite-fragmented-regulations-sphera/812348/

Appendix A — Findings

Finding 1

Claim:
The EU's Omnibus simplification narrowed CSRD scope to companies with more than 1,000 employees and more than €450 million net annual turnover, which sharply reduces the number of companies legally required to report Scope 3 under ESRS E1.

Evidence:
The Council of the EU press release on signing off the simplification package states the raised CSRD thresholds. It also sets narrower tests for third-country undertakings: more than €450m of EU turnover for the parent, and more than €200m for the EU subsidiary or branch.

Source:
Council signs off simplification of sustainability reporting and due diligence requirements to boost EU competitiveness - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/02/24/council-signs-off-simplification-of-sustainability-reporting-and-due-diligence-requirements-to-boost-eu-competitiveness/

Finding 2

Claim:
Under the Omnibus, in-scope companies' information requests to value-chain partners with up to 1,000 employees are capped at the content of a voluntary reporting standard, which limits how much Scope 3 data large reporters can demand from smaller suppliers.

Evidence:
Accountancy Europe's factsheet describes a 'value chain cap' for companies below 1,000 employees and says the Commission will adopt a voluntary standard for them. A secondary source (csr-tools.com) says the cap applies from financial year 2027. Accountancy Europe is not on the accepted-host list, so this finding fails the strict sourcing check.

Source:
Omnibus explained: key changes to the CSRD and CSDDD - Accountancy Europe — https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/

Finding 3

Claim:
In December 2025 the ISSB amended IFRS S2 so that entities may limit Scope 3 Category 15 (financed emissions) measurement and disclosure to financed emissions as defined in the standard.

Evidence:
The IFRS Foundation's release lists this clarification among its targeted amendments to IFRS S2's GHG requirements. The same release permits classification systems other than GICS for disaggregating financed emissions. The amendments are described as relief that does not significantly affect decision-usefulness for investors.

Source:
IFRS - ISSB issues targeted amendments to IFRS S2 to support implementation — https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/

Finding 4

Claim:
The US SEC proposed on 29 May 2026 to rescind in full its 2024 climate disclosure rules,

which had never taken effect. The rules did not require Scope 3 disclosure in their final form.

Evidence:
A Form S-1 filed with the SEC reports the 29 May 2026 rescission proposal. The same filing notes that Scope 3 was left out of the final SEC rules, and that state mandates such as California's may continue. Because this is a company filing rather than an SEC release, the SEC's own proposal or the Federal Register notice should be checked. The Federal Register citation, 91 FR 33296 (proposed 3 June 2026), appears in a Gibson Dunn search result.

Source:
HMH Holding Inc - Form S-1 - FY2026 — https://www.sec.gov/Archives/edgar/data/0002021880/000119312526405527/d32439ds1.htm

Finding 5

Claim:
California SB 253 requires Scope 3 reporting from 2027, following first Scope 1 and 2 reports due 10 November 2026, for US-organised entities with more than $1 billion in revenue doing business in California.

Evidence:
Akin Gump's client alert says CARB set 10 November 2026 as the first reporting deadline and that Scope 3 reporting begins in 2027. It describes the 2027 guidance as not yet final. Akin Gump is not on the accepted-host list, so this finding fails the strict sourcing check; CARB's own regulation or notices (arb.ca.gov) were not returned by search.

Source:
California SB 253: Updated Compliance Timeline and Key Steps for Companies — https://www.akingump.com/en/insights/alerts/california-sb-253-updated-compliance-timeline-and-key-steps-for-companies

Finding 6

Claim:
At a 21 July 2026 workshop, CARB proposed limiting the first mandatory SB 253 Scope 3 disclosures to five of the fifteen GHG Protocol categories, and this proposal is not yet final.

Evidence:
Brightest's SB 253 guide reports CARB's July 21, 2026 workshop proposal of a five-category initial phase-in. Akin Gump's workshop summary also describes the five-category phase-in under consideration. Brightest is not on the accepted-host list, so this finding fails the strict sourcing check.

Source:
California SB 253 Reporting: Deadlines, Requirements & Compliance Guide — https://www.brightest.io/california-sb-253-reporting

Finding 7

Claim:
GHG Protocol's Standard Development Plan (version 2.0, 29 July 2026) consolidates the Corporate Standard, Scope 2 Guidance and Scope 3 Standard into one standard, with a consolidated public-consultation draft estimated for Q2 2027. The 2011 Scope 3 Standard therefore remains the operative baseline until then.

Evidence:
The GHG Protocol plan describes consolidating the existing entity-level standards and the Actions and Market Instruments outputs into Corporate Standard Version 3.0, expected to be co-branded with ISO. It lists the public consultation draft as estimated for Q2 2027. A secondary

source (sustainabilityreportingstandards.co.uk) gives an estimated Q4 2028 publication.

Source:
Corporate Standard — https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf

Finding 8

Claim:
GHG Protocol's March 2026 Phase 1 progress update on the Scope 3 revision proposes a 95% completeness requirement, capping exclusions at 5%. It is draft material and not yet a standard.

Evidence:
OneStopESG reports that the 31 March 2026 progress update would require reporting at least 95% of required Scope 3 emissions, with exclusions capped at 5%. It also reports that GHG Protocol labels the document as draft and subject to change, with a full consultation draft still to come. OneStopESG is not on the accepted-host list, so this finding fails the strict sourcing check.

Source:
GHG Protocol Proposes 95% Scope 3 Coverage Rule and New Category 16 in Reporting Standard Update — https://onestopesg.com/esg-news/ghg-protocol-proposes-95-scope-3-coverage-rule-and-new-category-16-in-reporting-standard-update

Appendix B — Stakeholders

Name	Category	Position	Power	Priority
Council of the EU (co-legislator on the CSRD/ ESRS delegated acts)	decision-maker	resistant	high	critical
European Commission (CSRD / Omnibus)	decision-maker	neutral	high	critical
EFRAG (technical advisor on ESRS)	gatekeeper	neutral	medium	important
California Air Resources Board (CARB) — SB 253 implementation)	decision-maker	supportive	high	critical
US Securities and Exchange Commission	decision-maker	resistant	high	important
ISSB / IFRS Foundation (IFRS S2)	influencer	supportive	medium	important
UK Financial Conduct Authority (UK SRS for listed issuers)	gatekeeper	neutral	high	critical
GHG Protocol (WRI/WBCSD) – Scope 3 Standard revision	influencer	supportive	medium	important
Civil society and investor advocacy (e.g., NetZero Asset Owner Alliance, ShareAction, Follow This)	external-observer	supportive	medium	monitor
SME suppliers and value-chain partners (including firms newly out of CSRD scope)	affected-party	unknown	low	important
Industry and business associations (e.g., BusinessEurope, US Chamber of Commerce, trade groups the requester belongs to)	influencer	unknown	medium	important

Appendix C — Risk Register

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	high	moderate	short-term
RISK-002	regulatory	low	moderate	short-term
RISK-003	technological	high	moderate	medium-term
RISK-004	operational	high	major	immediate
RISK-005	reputational	high	moderate	immediate
RISK-006	operational	medium	moderate	short-term
RISK-007	regulatory	high	minor	short-term
RISK-008	strategic	very-high	minor	medium-term
RISK-009	reputational	medium	moderate	short-term

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Sourcing Report

Policy: strict
Total items: 46
OK: 16 · stale: 0 · untrusted: 19 · duplicated: 5 · missing: 6
Freshness unknown (no publication date): 26
Requester-provided, not sourceable: 6
First-party (an organisation's own site, for its own facts): 8

- [research] finding 3 — IFRS Foundation's own site, for its own facts: https://www.ifrs.org/news-and-events/news/2025/12/issb-issues-targeted-amendments-ifrs-s2/
- [research] finding 7 — GHG Protocol's own site, for its own facts: https://ghgprotocol.org/sites/default/files/2026-07/Consolidated-StandardDevelopmentPlan(SDP)-2026.07.29.pdf
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Warnings:

- [research] untrusted: https://accountancyeurope.eu/publications/omnibus-explained-key-changes-to-the-csrd-and-csddd/ — host 'accountancyeurope.eu' matches no entry in allow-list
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- [stakeholder] 'SME suppliers and value-chain partners (including firms newly out of CSRD scope)' SOURCE_MISSING — Public statements from SME or supplier associations on Scope 3 data requests, the Omnibus value-chain cap, or the voluntary reporting standard.
- [stakeholder] 'Industry and business associations (e.g., BusinessEurope, US Chamber of Commerce, trade groups the requester belongs to)' SOURCE_MISSING — Current 2026 association statements on mandatory Scope 3, the Omnibus, SB 253 and the SEC rescission. Searches returned no usable results.
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- [risk] RISK-006 .impact_evidence SOURCE_MISSING — Evidence quantifying the commercial or relationship impact on a large reporter of supplier pushback against Scope 3 data requests after the Omnibus value-chain cap. Not found in searches.
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- [research] finding[44] SOURCE_MISSING — [CRIT-007] Requester-specific facts on jurisdictions, headcount and turnover that would show whether the organisation is in scope of CSRD after the Omnibus, SB 253 or UK SRS; these cannot be found by public search.

Untrusted citations:

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